

How the Cookie Crumbles: Trends in Privacy Law Compliance Across US States

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Introduction: What and Why?

Background & Objective

Websites routinely compile and sell personalized user profiles to advertisers. Privacy laws in several states now let residents opt out via Global Privacy Control (GPC), a signal that instructs sites to stop selling or sharing their data. While GPC compliance under California's privacy law was shown to be improving slowly, it was unclear how newer state laws (CO, CT, NJ) compare. Our research aims to address this ambiguity.

Defining Compliance

When a site receives a GPC signal, it is responsible for passing that opt-out preference along to any third parties it works with. This is done through privacy flags like the US Privacy String, the GPP string, and the OptanonConsent cookie.

Sites that successfully perform this responsibility are known as compliant with GPC and state privacy laws.

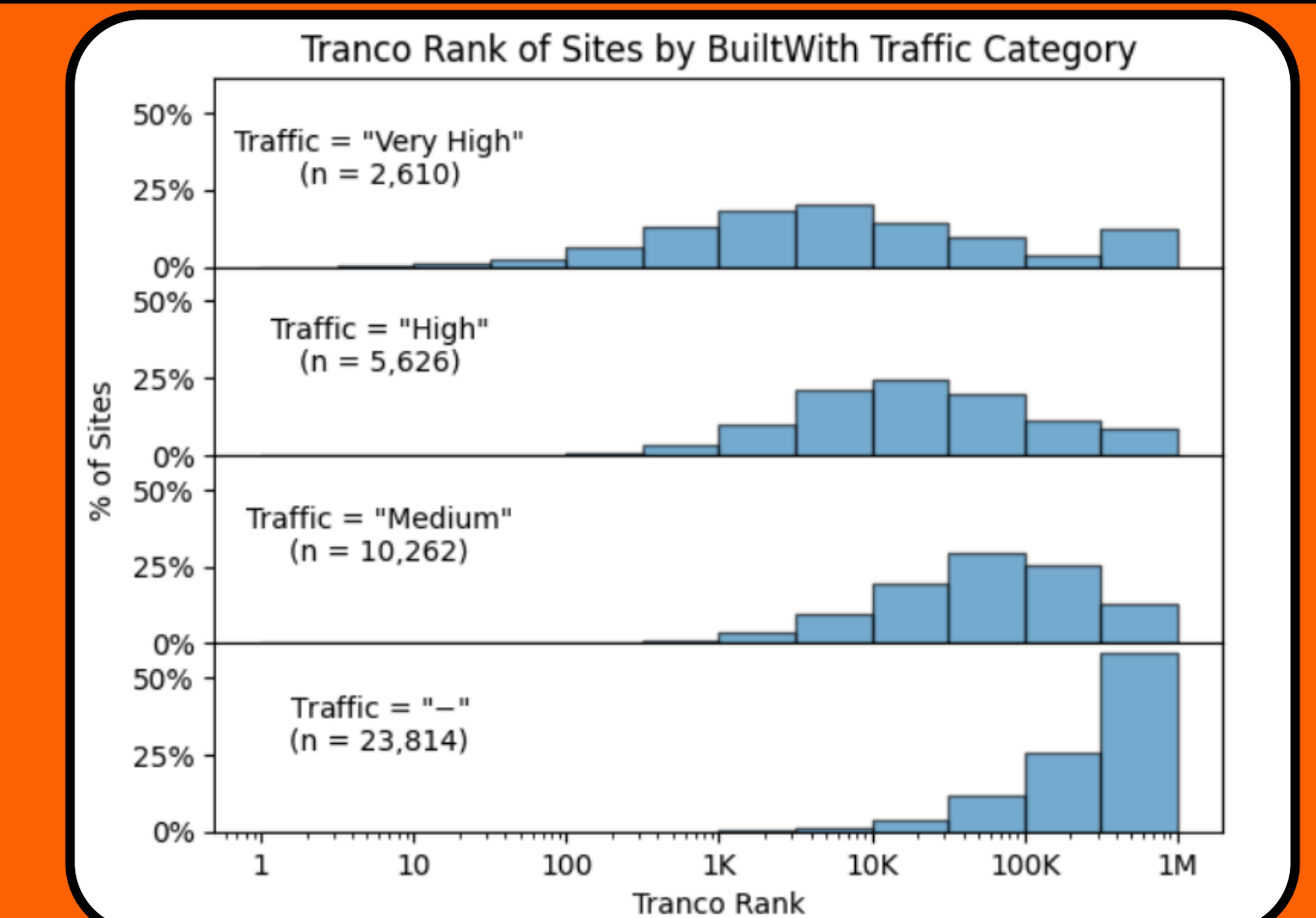


Methodology: Local Web Crawler

Website Demographics

To build our crawlset, we...

1. Start from sites flagged by BuiltWith as using GPC, USPS, or a major ad network, filtered to at least "Medium" web traffic
2. Rank by Tranco to build the crawl set
3. Confirm each site shows evidence of selling/sharing personal data (via third-party trackers it loads)
4. Confirm the site meets each state's applicability threshold (e.g., enough estimated traffic from that state to fall under its privacy law)

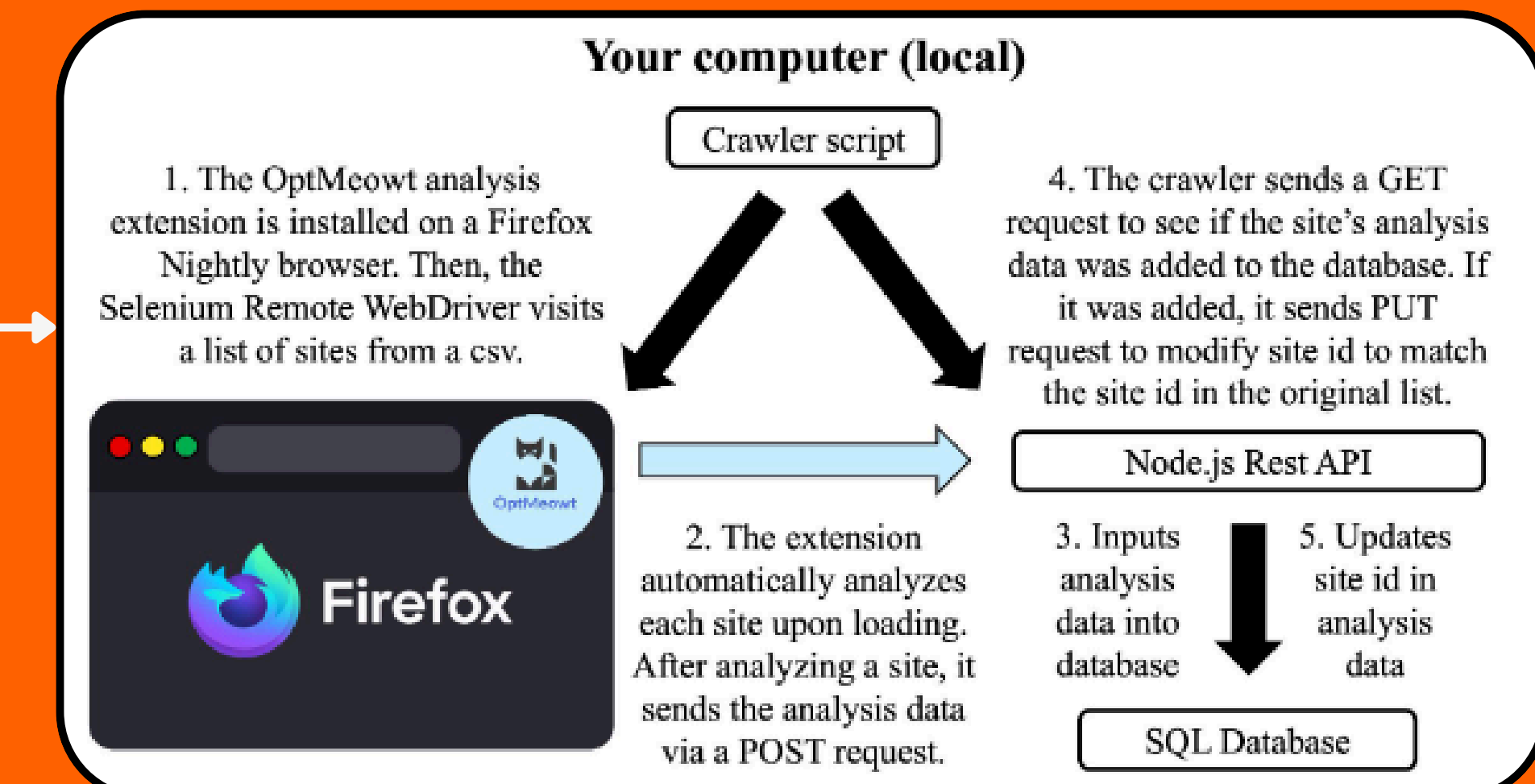


Determining GPC Compliance

At each visited site, we...

1. Check the site's privacy strings (USPS, GPP, OptanonConsent cookie) before sending anything
2. Send a GPC signal to the site
3. Recheck the same privacy strings afterward
4. Compliant = did the relevant opt-out field flip to "opted out"?

This all runs locally!



Results: Three Main Takeaways

1

Between May 2025 and April 2026, GPC opt-out compliance rose across all 4 states.

that being said...

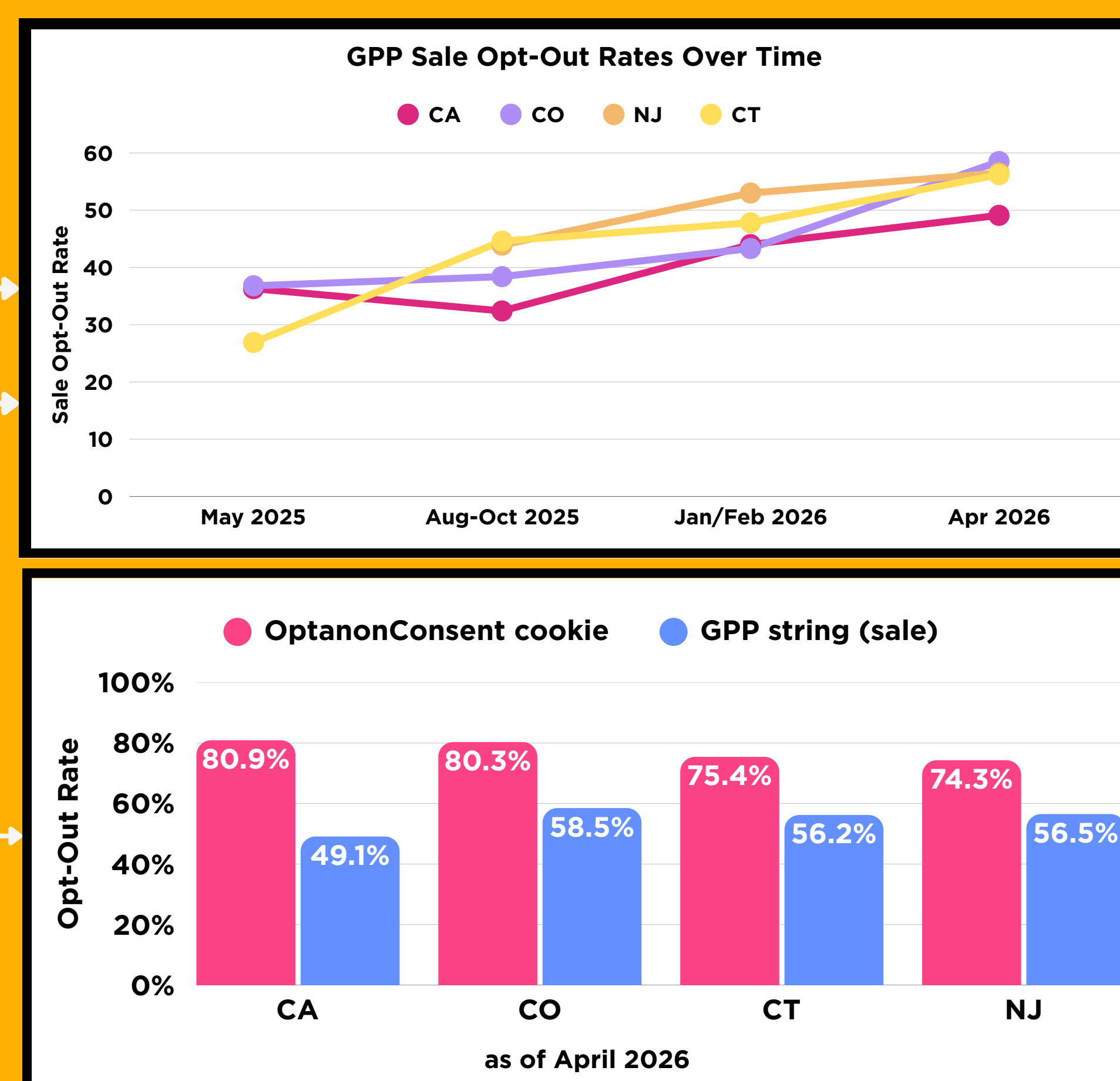
2

Even the best-performing state (CO) failed to honor sale opt-outs for 42% of sites.

what's more, is that...

3

Not all privacy strings were employed equally: compliant websites unanimously preferred to employ the OptanonConsent Cookie.



Discussion: Broader Implications

Results #1-2

More states adopting GPC hasn't closed the compliance gap. even the leading state (CO) still fails to honor opt-outs for over 4 in 10 sites. For users, this creates a false sense of security. Activating GPC feels like taking action, but there's no guarantee it's honored on the other end.

Results #3

Whether a site complies often comes down to which platform it's built on. Sites using established tools like OneTrust already comply at high rates. Getting the GPP string to that same standard would be a meaningful step forward.

Suggestions

Closing this gap likely needs more than voluntary adoption. We recommend equipping privacy regulators with low-friction tools (building on crawlers like ours) to quickly flag and report non-compliant sites, shifting enforcement from one-off audits toward monitoring at scale.



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